

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)**

Writ Petition No. 9948 of 2022

IN THE MATTER OF:

An application under Article 102 of the
Constitution of the People's Republic of
Bangladesh

-And-

IN THE MATTER OF:

Md. Azad and 30(thirty) others

.....Petitioners.

-VS-

The Government of the People's Republic of
Bangladesh and others

.....Respondents.

Mr. Murad Chowdhury, Advocate with

Mr. Rezaul Karim, Advocates

.....for the petitioners

Mr. K.S. Salah Uddin Ahmed, Advocate

.....for the Respondent no. 2.

Mr. A.B.M. Golam Mostafa, Advocate

.....for the added Respondent no.6.

Mr. Tushar Kanti Roy, DAG with

Mr. Md. Salim Azad, A.G.G with

Ms. Anis ul Mawa, A.A.G

.....For the respondents.

Heard on: 22.11.2023 and

Judgment on : 23.11.2023

Present:

Mr. Justice Mustafa Zaman Islam

And

Mr. Justice Md. Atabullah

Mustafa Zaman Islam, J;

In this application under Article 102 of the Constitution of the
People's Republic of Bangladesh, a Rule Nisi was issued calling upon the
respondents to show cause as to why the arbitrary and illegal enlistment of

new Watchmen in the Watchman Booking Cell and include them in the Booking Ship by the respondents denying to enlist existing watchmen including petitioners in the Booking Cell violating Chapter Three Rule 2.4 and Chapter 4 Rule 3.1 and Chapter Five Rule 4.1, 4.2 and 4.3 of the Watchman Management and Direction Procedure (JuᵢQjÉᵢe hÉhÙÛᵢfeᵢ J f¢lQᵢmeᵢ fÜ¢a) should not be declared to have been issued without lawful authority and is of no legal effect and as to why the respondents should not be directed to enlist the petitioners in the Watchman Booking Cell as sell as issued entry pass to the petitioners and/or pass such other or further order or orders passed as to this Court may seem fit and proper.

The facts leading to issuance of the Rule Nisi are that, the respondent no. 02, introduced the new Booking Cell System to recruit watchman to protect safety and security of ship at port, to implement the International Ship and Port Faculty Security (ISPS) Code, to harmonize Chittagong Port security system to the International Standard, to protect interest of commerce of the country.

The Watchmen are appointed for the purpose of ensuring the safety and security of the incoming ships at the port and the ships at the outer anchorage. Previously, some nominated watchman contractors used to appoint watchman for the incoming ships and anchored in the outer anchorage. They failed to ensure the safety and security of the ships for the lacking of professional training, uniform and identity cards of Watchman. Moreover, Watchman appointed by the contractors were not accountable thus they involved themselves in the theft, dacoity and piracy etc. in the designated ships. As a result, safety and security of the incoming ships and

waiting ships were compromised, adversely undermining the reputation of CPA or Bangladesh as a whole.

The respondent no.1 informed respondent no.2 along with others that as a signatory country in SOLAS convention, Bangladesh is obliged to implement ISPS code from 1st July, 2004. Accordingly, respondent no.2, Chittagong Port Authority has started to implement ISPS Code since 1st June, 2010 in order to ensure safety and security of the ships in accordance with International Standard. As a member of International Maritime Organization (IMO), Bangladesh has duty to accept the standard set out by IMO regarding ships including foreign ships plying and berthing in Chittagong Port. As a signatory country, Bangladesh is obliged to abide by the Rules laid down in the said ISPS code. Therefore, in August 2004 CPA published a Handbook for ISPS code to guide security workforce of Chittagong Port. Under the said ISPS code, the government of Bangladesh/CPA can instruct the ships to take necessary measurements in order to ensure the safety and security against potential threats.

As per decision, the Watchman Management and Direction Procedure (JuᵢQjÉᵢe hÉhÛÛᵢfeᵢ J f¢lQᵢmeᵢ fÛ¢a) under control of respondent no. 2 i.e CPA was approved on 18.10.2009 and the said the Watchman Management and Direction Procedure System (JuᵢQjÉᵢe hÉhÛÛᵢfeᵢ J f¢lQᵢmeᵢ fÛ¢a) was approved finally by CPA by its Board Resolution no. 12967 dated 19.11.2009.

It is further stated that on 24.06.2010, CPA, considering the new system of recruiting Watchman asked the Watchman to register through the Booking Cell and to collect new ID Cards. According to aforesaid approval

on 15.06.2010, the Watchman Booking Cell commenced operation under the security department of CPA. After introduction of the Watchman Management and Direction System, petitioner along with 650 Watchman are recruited through the Watchman Booking cell and have provided identity card issuing date of 15.06.2010. It is stated that from the very introduction of the Watchman Management and Direction System at least 650 Watchman enlisted in the Booking cell, trained up, provided identity card and proper uniforms. Further stated that upon violation of the provision specify Watchman Management and Direction System and without any discussion with any stake holders, respondents, recruit 1050 Watchman and enlisting them in the Watchman Booking Cell by denying enlisting existing Watchman in the Booking. It is stated that the maximum number of Watchman will be 650 and accordingly recruited 650 Watchman as per Watchman Management and Direction System, but the respondents are reluctant to issue entry pass and enlisting in the Watchman Booking Cell to the existing Watchman rather respondents recruit 105 Watchman and enlisted them in the Booking Cell by providing Booking slip whose identity number starts from 651. Noted that the petitioner no. 01 on behalf of 300 enlisted Watchman requested the respondent no. 02 with providing copy to other respondents that he was enlisted Watchman of Chittagong Port Authority and participated in the training programme organized by Chittagong Port Authority and ended with success and obtained identity card. Though, he was enlisted member of the Register as Watchman but without entry in the Booking Cell he has not got permission to entry in the Port. The petitioner no. 01 stated that he along with 300 Watchman are out

of list of Booking Cell and they are trying to entry in the Booking Cell but authority of Booking Cell reluctant to give permission to entry in the Booking Cell without any cause, rather Port Authority of Booking Cell enlisted some persons who are unknown and without getting and training appointed and enlisted in the Booking Cell.

Finding no other alternative efficacious remedy the petitioner has moved before this Court and obtained the instant Rule Nisi.

Mr. Rezaul Karim, the learned Advocate for the petitioner submits that the arbitrary and illegal enlistment of new Watchmen in the Watchman Booking Cell and include them in the Booking Slip (Annexure-D, D1 and D2) by the respondents denying to enlist existing Watchmen including petitioners in the Booking Cell violating Chapter 3(three) rule 2.4 and Chapter 4 rule 3.1 and Chapter 5(five) rule 4.1, 4.2 and 4.3 of the Watchman Management and Direction System is malafide, arbitrary and done for collateral purpose which is liable to be declared to have issued without any lawful authority and is of no legal effect.

Mr. K.S Salah Uddin Ahmed, learned Advocate appearing on behalf of respondent no. 2 and the Rule is opposed and an affidavit-in-opposition was listed. He submits that the Writ Petition is not maintainable in its present form and manner and the Rule is liable to be discharged. He submits that the enlisted Watchman is not an employee of the CPA and CPA only control them in the interest of the port as per the said Nitimala, moreover their wages and salary are also not paid by the CPA rather it is paid by the shipping agent who have not been made party in the instant Writ Petition as such the rule is liable to be discharged.

Mr. A.B.M. Golam Mostafa, the learned Advocate for the added respondent no. 06 by filing an affidavit for discharging the Rule submits that the writ petitioner adopted unfair means by false personation and misrepresentation through this writ petition.

We have perused the writ petition, its annexures, affidavit in opposition filed by respondent no.2 and others materials on record placed before us.

In this writ petition, the petitioners have challenged the enlistment of new Watchman in the Watchman Booking Cell and include them in the Booking ship by the respondents denying to enlist existing Watchman in the Booking Cell.

It appears from the submission of the learned Advocate for the respondent no. 02, who has raised jurisdiction issue of maintainability of the writ petition under Article 102 of the constitution by contending that since the respondent no. 02 has no power to issue any letter on behalf of Chattagram Bandor Marine Contractors Shramic Union, Reg. No. Cht-1617, have maintainability of the writ petition is considered as a preliminary issue.

It is the specific contention of the respondents that as no public duty or function is involved, the enlisted Watchman is not an employee of the Chittagong Port Authority (CPA) and CPA only control them in the interest of the Port in accordance with law, moreover, their wages and salary are also not paid by the CPA rather it is paid by the shipping agents who have not made party in the instant writ petition. Writ of certiorari cannot be issued to the Shipping agent. For proper disposal of the Rule, it is profitable to reproduce the relevant Nitimala which is reproduced below:-

Chaper III, Rule 2:4:

Ju;QjÉ;e e-u;N:

2:1.....

2:2.....

2:3.....

2:4:- e-u;N:- fœL;u e'h'fe/plhl;qL;l;l j;dÉ-j Ju;QjÉ;e e-u;-Nl
B-hcefe Bqh;e Ll; q-hz

Chapter IV: rule 3:1:- -L;ø N;XÑ/h¾cl fÐnrZ ®L-¾cÐ fÐnrZ:-
fÐ;bç;Ll;-h eedÑ;çla hÉçš²hÑÑ-L Ju;QjÉ;e çqp;-h e-u;N ®cu;l f§-hÑ
a;-cl ®L;ø N;XÑ/h¾cl fÐnrZ ®L-¾cÐ Q;l (04) pç;-ql hæeu;cÉ
®L;-pÑ Awn NĚqZ Ll-a q-hz fÐnr-Z pgm;-h EšŁZÑ fÐ;bŁÑNe-L
Ju;QjÉ;e çqp;-h ÛÛ;uŁ e-u;N fœ fÐc;e Ll; q-hz

Chapter V: rule 4.1 a;çmL;i¥çš²:- hæeu;cÉ/çh-no fÐnr-e
L«aL;kÑ pLm fÐ;bŁÑ-L hæçLw ®p-m a;çmL;i ¥š² (®lçSØV;l) Ll-a
q-hz a;çmL;i¥çš²l SeÉ fÐ-aÉL Ju;QjÉ;e-L çeS çeS CEçeue fçlo-cl
®Qui;lÉ;e/Ju;XÑ Lçjne;l q-a pwNªqŁa e;NçlL pecfe S;j çc-a q-hz

It is settled position of law that writ petition under Article 102 of the constitution is maintainable against (I) the State (II) an authority (III) a statutory body (IV) agency of the state (V) a person or a body under liability to discharge any function under any statute, to compel it to perform such a statutory function. Here, the Watchman Management and Direction Procedure policy is not a statute or statutory law, and when a respondent created by a statute, which itself prescribes the remedy or procedure for enforcing the right or liability, resort must be had to that participating statutory remedy before invoking the discretionary remedy under Article 102

of the constitution. The afore said Nitimala is not a legal instrument creating legal rights for the petitioners in order to enlisted Watchman and Booking Cell to Chattogram Port Authority and the said Nitimala has not any force of law. This Rule is not maintainable in its present form.

In view of the above discussion and law laid down by this court, writ petition is not maintainable under Article 102 of the constitution and the same is liable to be discharged.

In the result, the Rule is discharged.

The office is directed to communicate the order at once.

Md. Atabullah, J:

I agree.